



Hapag-Lloyd - ZIM

MN - 65022

Phase 1 Determination

Acquisition may be put into effect

21 July 2026

1. Determination and statement of reasons

Notified acquisition	Hapag-Lloyd Aktiengesellschaft's (HLAG) proposed acquisition of 100% of the outstanding shares and voting rights of ZIM Integrated Shipping Services Ltd (ZIM) (the Acquisition)
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, HLAG, is an international container liner shipping company, offering global transport services for container cargo and has the fifth largest TEU in the world. The target, ZIM, is a public company listed on the New York Stock Exchange in the USA (NYSE: ZIM). Its headquarters are in Israel. Globally, ZIM is active in container line shipping and related services, including logistics services (such as freight forwarding). In Australia, ZIM operates a single container liner shipping service, which connects Australian east coast ports (Brisbane, Sydney and Melbourne) to ports in Asia (Busan, Qingdao, Shanghai, Ningbo, Yantian). ZIM also has a limited presence in the downstream freight forwarding services market in Australia. HLAG does not conduct these activities in Australia.
Overlap between the Parties	Horizontal overlap in the supply of container liner shipping services between Asia and Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The Parties' are relatively small providers of container liner shipping services between Asia and Australia on most routes, and the merged firm would continue to face competition from alternative providers, including several larger container shipping lines.

Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**